

26STLC00586 26STLC00586

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 26STLC00586 Hearing Date: June 23, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Maria Gutierrez's

Petitions to Approve Compromise of Disputed Claim on behalf of Minor Plaintiffs

Merida Bucio and Sahara Bucio are denied without prejudice.

Analysis:

Minor Plaintiffs Merida Bucio and

Sahara Bucio ("Claimants"), by and through Plaintiff Maria Gutierrez ("Petitioner"),

filed the instant action for motor vehicle negligence against Defendants Susan

Zarita and Norma Carrillo ("Defendants") on January 28, 2026.

On March 23, 2026, Petitioner filed

Petitions for Approval of Compromise of Claim or Action or Disposition of

Proceeds of Judgment for Minor or Person with a Disability. The Petitions were

set for hearing on June 11, 2026, then continued to June 23, 2026 at

Petitioner's request. (Minute Order, 03/30/26.)

Discussion

Court

approval is required for all settlements

of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code Civ. Proc., § 372.) “[W]ithout trial court approval

of the proposed compromise of the ward's claim, the settlement cannot be valid.

[Citation.] [¶] Nor is the settlement

binding [on the minor] until it is endorsed by the trial court.” (Pearson

v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like

Claimant, “shall appear either by a guardian or conservator of the estate or by

a guardian ad litem appointed by the court in which the action or proceeding is

pending, or by a judge thereof, in each case.” (Code Civ. Proc., § 372, subd.

(a)(1).) Alternatively, the petitioner may file a declaration demonstrating

that they have a right to compromise the minor's claim under Cal. Probate Code

section 3500.

The Petitions have issues that

prevent approval. First, Petitioner has not been appointed Guardian Ad Litem

for either Claimant, in order to appear on their behalf. Second, although both

Petitions attest that Claimants have recovered fully from their injuries,

neither attaches a doctor's report demonstrating this recovery. (Pets., ¶8a.)

The doctor's report for Claimant Merida is dated December 7, 2024 and refers to

ongoing injuries that require follow-up treatment. (Pet., Attachment 8, pp.

6-7.) The report for Claimant Sahara is dated March 25, 2024 and simply

indicates a diagnosis, but includes no prognosis or treatment plan, if needed.

(Pet., Attachment 8, p. 8.)

Finally, neither Petition is

accompanied by the required proposed Order Approving Compromise of Disputed

Claim or Pending Action or Disposition of Proceeds of Judgment for Minor or

Person with a Disability (Judicial Council Form MC-351) or proposed Order to

Deposit Funds Into Blocked Account (Judicial Council Form MC-355). (See LASC

Rule, rule 4.115(d).) In light of these defects, the Petitions are denied

without prejudice to refiling in compliance with the statutory requirements.

Conclusion

Petitioner Maria Gutierrez's

Petitions to Approve Compromise of Disputed Claim on behalf of Minor Merida

Bucio and Sahara Bucio are denied without prejudice.

Moving

party to give notice.